

1 ROBERT K. HANNA, State Bar No.: 341970
2 JUNQIAO XIAO, State Bar No.: 341670
3 HYO JIN JULIA JUNG, State Bar No.: 316090
4 MICHAEL D. KAHN, State Bar No.: 236898
5 LAMONT FREEMAN, State Bar No.: 349862
6 350 CAMINO DE LA REINA, SUITE 100
7 SAN DIEGO, CA 92108
8 Telephone: (866) 300-8750
9 Facsimile: (858) 309-1588
10 E-mail: CaliforniaLegal@mcmcg.com
11 CA Debt Collector License Number Pending
12 Attorneys for Plaintiff

Electronically FILED by
Superior Court of California,
County of Los Angeles
3/18/2024 12:00 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By Z. Pedraza, Deputy Clerk

8 **SUPERIOR COURT OF CALIFORNIA**
9 **COUNTY OF LOS ANGELES**
10 **CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT**

11 MIDLAND CREDIT MANAGEMENT, INC.
12 Plaintiff,

13 v.

14 JESSICA PENA

15 Defendant(s).

Case No. 24CHLC00783

**DECLARATION IN SUPPORT OF
JUDGMENT PURSUANT TO
C.C.P. § 585(d) and § 1788.60**

28 **EXHIBITS IN SUPPORT OF JUDGMENT**

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

STATE OF CALIFORNIA
COUNTY OF _____

Midland Credit Management, Inc.,
Plaintiff
-vs-
JESSICA PENA,
Defendant(s).

DECLARATION OF HAILEE MILLER
IN SUPPORT OF JUDGMENT

Hailee Miller, whose business address is 600 W. Saint Germain St Suite 200, St. Cloud,
MN 56301-3616, certifies and says:

1. I am an officer for and employed as a Legal Specialist by Midland Credit Management
Inc. ("Plaintiff"). I am a competent person over eighteen years of age, and make the
statements herein based upon personal knowledge of those account records maintained by
Plaintiff. Plaintiff is the current owner of, and/or successor to, the obligation sued upon,
and was assigned all the rights, title and interest to Defendant's CITIBANK, N.A. account
XXXXXXXXXXXX4834 (MCM Number 316606244) (hereinafter "the Account").
2. I have access to and have reviewed the electronic records pertaining to the Account
maintained by MCM and am authorized to make this affidavit on MCM's behalf. The

DECLARATION OF HAILEE MILLER - 1

316606244

AFFRECATTACH

23-210701

1 electronic records reviewed consist of (i) data and records acquired from the seller or assignor
2 when MCM purchased or was assigned the Account, which were incorporated into MCM's
3 business records upon purchase or assignment, and (ii) data and records generated by MCM
4 in connection with servicing the Account since the date the Account was purchased by or was
5 assigned to MCM. In addition, I reviewed the documents that are attached to this affidavit.

6 3. I am familiar with and trained on the manner and method by which MCM creates
7 and maintains its business records pertaining to this Account, which consist of (i) data and
8 documents acquired from the seller, and (ii) subsequent collection and/or servicing activities
9 by MCM. The records are acquired or created, and are kept in the regular course of MCM's
10 business. It was in the regular course of MCM's business for a person with knowledge of
11 the subsequent collection and/or servicing activities recorded to make the record or data
12 compilation, or to transmit information thereof to be included in such record, or for such
13 information to be posted in MCM's records by a computer or similar digital means. In the
14 regular course of MCM's business, the record or compilation of the subsequent collection
15 activities is made at or near the time of the act or event by MCM as a regular practice.

16 4. On or about 2022-02-17, Midland Credit Management, Inc. became the successor in
17 interest to this Account. Plaintiff acquired and incorporated the attached Account records into
18 its permanent business records as a result of Plaintiff's purchase or assignment of the Account.
19 These records are kept in Plaintiff's regular course of business and, along with the electronic
20 records provided at the time of purchase or assignment, are Plaintiff's primary source of
21 business records for this Account.

22 5. The accuracy of such records is relied upon by Plaintiff in collecting this Account. These
23 records are trustworthy and relied upon because the original creditor was required to keep
24 careful records of the Account at issue in this case as required by law and/or suffer business
25 loss.

26 6. This Account was purchased after 2014-01-01 and, therefore, is subject to California
27 Civil Code Section 1788.60.

28

DECLARATION OF HAILEE MILLER - 2

316606244

AFFRECATTACH

23-210701

1 7. In accordance with California Civil Code sections 1788.58(a)(3-8), MCM's records show
2 the following relevant information concerning the Account:
3 a. Plaintiff is the sole owner of the Account.
4 b. The Account was opened on 2017-03-01 and charged off on 2022-01-11 with a
5 balance of \$3,961.16.
6 c. MCM's records show that the balance of \$2,961.16 remains due and owing as of
7 2024-01-27. Plaintiff is not seeking to recover any post-charge-off interest and/or fees that
8 may have been imposed by the charge-off creditor or subsequent purchasers of the debt and is
9 seeking to recover only that portion of the charge-off balance that remains due and owing as of
10 2024-01-27.
11 d. The last payment posted to the Account on 2022-09-06.
12 e. The charge-off creditor name and address at the time of charge-off:
13 CITIBANK, N.A., 5800 SOUTH CORPORATE PLACE , SIOUX FALLS, SD
14 57108
15 f. The charge-off Account number associated with the debt at time of charge-off was
16 XXXXXXXXXXXXX4834.
17 g. Defendant's name and last known address as it appeared in the charge-off creditor
18 or debt owner's records:
19 JESSICA PENA, 12983 SUNBURST ST , PACOIMA, CA 91331
20 h. The complete chain of title including CITIBANK, N.A. and all post-charge-off
21 purchasers/assignees of the debt are as follows:
22 1. CITIBANK, N.A. 5800 SOUTH CORPORATE PLACE,SIOUX FALLS,SD,57108
23 2. Midland Credit Management, Inc. 350 CAMINO DE LA REINA,SUITE 100,SAN
24 DIEGO,CA,92108
25 8. MCM's records show that MCM or its agents made demand for payment of the balance
26 herein prior to making this affidavit and Defendant(s) failed to make full payment of the
27 amount owed on the Account.
28

DECLARATION OF HAILEE MILLER - 3



1 9. Attached hereto as Exhibits A, B, and C are the Account records I reviewed in executing
2 the affidavit that relate to the Account and/or payment(s) received.

3 Exhibit A. Chain of Title and Seller Data Sheet - establishing the facts
4 required under Civil Code sections 1788.58(a)(3), (4), (5), (7)
5 and (8)

6 Exhibit B. Monthly Statement Recording a Purchase Transaction,
7 Payment, or Balance Transfer - establishing the fact required
8 under Civil Code section 1788.58(a)(5)

9 Exhibit C. Final Billing Statement or other Records - establishing the facts
10 required under Civil Code sections 1788.58(a)(4) and (6)

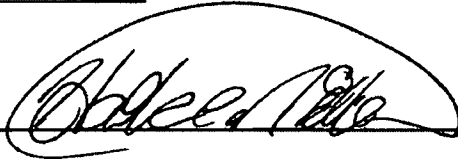
11 10. The documents attached hereto are true and correct copies of the originals, being a
12 reproduction of Plaintiff's records, based upon my review, except to the extent that confidential
13 and privileged information and/or personal identifying information is omitted or redacted as
14 required by local rules, and applicable state and federal law.

15 11. If called to testify as a witness thereon, I could and would competently testify as to all
16 the facts stated herein.

17 I declare under penalty of perjury under the laws of the State of California that the foregoing
18 statements are true and correct.
19

20
21 **FEB 13 2024**

22 Date

23
24 
25 Hailee Miller

26 CA137
27
28

DECLARATION OF HAILEE MILLER - 4



316606244



AFFRECATTACH



23-210701

EXHIBIT A

BILL OF SALE AND ASSIGNMENT

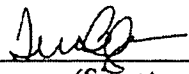
THIS BILL OF SALE AND ASSIGNMENT dated February 17, 2022, is by Citibank, N.A., a national banking association organized under the laws of the United States, located at 5800 South Corporate Place, Sioux Falls, SD 57108 ("Bank"), to Midland Credit Management, Inc., a corporation organized under the laws of Kansas, with its headquarters/principal place of business at 350 Camino De La Reina, Suite 100, San Diego, CA 92108 ("Buyer").

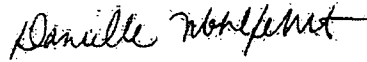
For value received and subject to the terms and conditions of the Master Purchase and Sale Agreement dated April 30, 2021 between Bank, Department Stores National Bank, and Buyer (the "Master Purchase Agreement"), and that certain Addendum No. 5 dated August 23, 2021, between Bank and Buyer (the "Addendum", and together with the Master Purchase Agreement, the "Agreement"), the Bank does hereby transfer, sell, assign, convey, grant, bargain, set over and deliver to Buyer, and to Buyer's successors and assigns, the Accounts summarized on the Asset Schedule attached hereto as Exhibit A and included in the Final Electronic File. Capitalized terms not defined herein shall have the definition ascribed in the Agreement.

With respect to information for the Accounts summarized on the Asset Schedule and included in the Final Electronic File, the Bank represents and warrants to Buyer that (i) the Account information constitutes the Bank's own business records and accurately reflects in all material respects the information in the Bank's database; (ii) the Account information was kept in the regular course of business; (iii) the Account information was made at or near the time by, or from information transmitted by, a person with knowledge of the data entered into and maintained in the Account's database; and (iv) it is the regular practice of the Bank's business to maintain and compile such data.

CITIBANK, N.A.

MIDLAND CREDIT MANAGEMENT, INC.

By: 
(Signature)

By: 
(Signature)

Name: Terri Bergman

Name: Danielle Wohlfahrt

Title: Authorized Party

Title: VP of BD

Contract ID: EN8MUMAA043021
Addendum ID: EN8MUMAA082321C5
Document ID: 020922MC1MU4EMA1

Exhibit A to Bill of Sale

The individual Accounts transferred are described in the final electronic file named Encore-Brands-Costco-Early-Out-Flow-Lot2-0222, and delivered by the Bank to Buyer, the same deemed attached hereto by this reference.

Lot	Sale ID	# of Accounts	Sale Balance	Cut-Off Date	Purchase Price Percentage
Brands and Costco Early Out Flow Lot 2	020922MC1MU4EM			2/9/2022	

AFFIDAVIT OF SALE OF ACCOUNT

State of Missouri
County of Platte

Terri Bergman, being duly sworn, deposes and says:

I am an authorized employee of Citibank, N.A. ("CBNA") located at 5800 South Corporate Place, Sioux Falls, SD 57108 am authorized to make the statements and representations herein and I am over 18 years of age. In this position, I have access to the creditor's books and records and am aware of the process of the sale of accounts and electronic storage of business records.

On or about February 17, 2022, CBNA sold a pool of charged-off accounts (the Accounts) by a Master Purchase and Sale Agreement dated April 30, 2021, Bill of Sale, and Addendum No. 5 dated August 23, 2021 to Midland Credit Management, Inc. As part of the sale of the Accounts, certain electronic records were transferred on individual accounts to the debt buyer. These records were kept in the ordinary course of business of creditor.

I am not aware of any errors in the information provided about the Accounts. The above statements are true to the best of my knowledge.

Signed this 22 day of February, 2022


Terri Bergman

State of Missouri)
) ss
County of Platte)

On this 22 day of Feb, 2022, before me, the undersigned notary, personally appeared Terri Bergman, personally known to me to be the person who signed the preceding or attached document in my presence and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of his/her knowledge and belief.

JKan

[SEAL]

G J KARR
Notary Public-Notary Seal
State of Missouri, Clay County
Commission# 18876434
My Commission Expires Aug 15, 2022

CERTIFICATE OF CONFORMITY

**STATE OF MISSOURI
CITY OF KANSAS CITY**

The undersigned does hereby certify that he/she is an attorney at law duly admitted to practice in the State of Missouri and is a resident of Platte County, in the State of MISSOURI; that he/she is a person duly qualified to make this certificate of conformity pursuant to the laws of the State of Missouri; that the foregoing affidavit by Terri Bergman named in the foregoing instrument taken before G. J. Karr, a Notary in the State of Missouri, was taken in the manner prescribed by such laws of the State of Missouri, being the State in which it was taken; and that it duly conforms with such laws and is in all respects valid and effective in such state.

2-22-22
Date

[Signature] mo #51227
Attorney at Law

Field	Field Data
Account Number	██████████ 4834
First Name	JESSICA
Last Name	PENA
SSN	████ -██ -7674
Date of Birth	██ /██ /████
Address 1	12983 SUNBURST ST
City	PACOIMA
State	CA
Zip	91331
Home Phone	██████████
Open Date	03/01/2017
Last Purchase Date	04/16/2021
Last Payment Date	10/07/2021
Last Payment Amount	\$100.00
Sale Amount	\$3,961.16
Charge Off Date	01/11/2022
Charge off Balance	\$3,961.16
Post Charge Off Interest	\$0.00
Post Charge off Fee	\$0.00
Post Charge off Payments	\$0.00
Post Charge off Payments and Credits	\$0.00
Post Charge off Credits	\$0.00
Affinity	AADVANTAGE GOLD
Alternate Account #1	██████████ 2545
Alternate Account #2	██████████ 8598
Alternate Account #3	██████████ 3751

Account information provided by Citibank, N.A. pursuant to the Bill of Sale/Assignment of Accounts transferred on or about 02/17/2022 in connection with the sale of accounts from Citibank, N.A. to Midland Credit Management, Inc.

Encore-Brands-Costco-Early-Out-Flow-Lot2-0222
020922MC1MU4EM

Account Ownership Report

2024-01-27

Debtor Name: JESSICA PENA**MCM Account Number:**
316606244**Current Owner:**
Midland Credit Management, Inc.**Ownership History**

Date of Transfer	Owner/Creditor	Owner/Creditor Address
1. 2022-02-17	CITIBANK, N.A.	5800 SOUTH CORPORATE PLACE,SIOUX FALLS,SD,57108
2.	Midland Credit Management, Inc.	350 CAMINO DE LA REINA,SUITE 100,SAN DIEGO,CA,92108


316606244
AFFRECATTACH
23-210701

EXHIBIT B

CITI® / AADVANTAGE® GOLD CARD



JESSICA PENA

Member Since 2017 Account number ending in: 4834

Billing Period: 09/10/21-10/11/21

www.citicards.com

Customer Service 1-800-866-9900

Speech/hearing impaired: 711

BOX 6500 SIOUX FALLS, SD 57117

OCTOBER STATEMENT

Minimum payment due: **\$857.28**
 New balance as of 10/11/21: **\$3,669.73**
 Payment due date: **11/07/21**

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	12 year(s)	\$7,406

For information about credit counseling services, call 1-877-337-8188.

Your account is past due \$439.65 and overlimit \$269.73. Please pay at least the minimum payment due, which includes a past due amount and an overlimit amount.

Account Summary

Previous balance	\$3,658.83
Payments	-\$100.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$40.00
Interest	+\$70.90

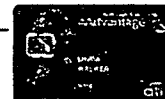
New balance **\$3,669.73**

Credit Limit

Revolving Credit limit **\$3,400**

Includes \$800 cash advance limit

AMERICAN AIRLINES
AADVANTAGE® MILES



AAdvantage® Miles
Earned this period:

0

» See page 3 for more information
about your rewards

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 85062-8045

Pay your bill from virtually anywhere
with the Citi Mobile® App and Citi® Online



To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due **\$857.28**

New balance **\$3,669.73**

Payment due date **11/07/21**

Amount enclosed:

Account number ending in 4834

Please make check payable to CITI CARDS.

000000 WE 00 A 0

JESSICA PENA
12983 SUNBURST ST
PACOIMA CA 91331-3344

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

15009 00&5728 0366973 0010000 0 4834 0704

JESSICA PENA

Account Summary

Trans. date	Post date	Description	Amount
-------------	-----------	-------------	--------

Payments, Credits and Adjustments

10/07		ONLINE PAYMENT, THANK YOU	-\$100.00
-------	--	---------------------------	-----------

Fees charged

Date	Description	Amount
10/11	LATE FEE - SEP PAYMENT PAST DUE	\$40.00

Total fees charged in this billing period	\$40.00
--	----------------

Interest charged

Date	Description	Amount
10/11	INTEREST CHARGED TO PUR PR-09/30/21.	\$68.52
10/11	INTEREST CHARGED TO PUR PR-09/30/21.	\$2.38

Total interest charged in this billing period	\$70.90
--	----------------

2021 totals year-to-date

Total fees charged in 2021	\$290.00
Total interest charged in 2021	\$626.71

Interest charge calculation

Days in billing cycle: 32

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	21.99% (V)	\$0.00 (D)	\$0.00
Pur Pr 063021	21.99% (V)	\$3,554.16 (D)	\$68.52
Pur Pr 093021	21.99% (V)	\$123.40 (D)	\$2.38
ADVANCES			
Standard Adv	25.24% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

©2021 Citibank, N.A.

Citi, Citi and Arc Design and other marks used herein are service marks of Citigroup Inc. or its affiliates, used and registered throughout the world. American Airlines, American Eagle, AAdvantage, AAdvantage Million Miler, MileSAAver, Business Extra, Flagship, Admirals Club, Platinum Pro, AAdvantage MileUp, AA Cargo, the Flight Symbol logo and the Tail Design are marks of American Airlines, Inc.

**AADVANTAGE®
MILES EARNED
THIS PERIOD:**

0

» Visit aa.com/aadvantage to redeem miles, book flights and much more

American Airlines reserves the right to change the AAdvantage® program and its terms and conditions at any time without notice, and to end the AAdvantage® program with six months' notice. Any such changes may affect your ability to use the awards or mileage credits that you have accumulated. Unless specified, AAdvantage® miles earned through this promotion/offer do not count toward elite status qualification or AAdvantage Million Miler™ status. American Airlines is not responsible for products or services offered by other participating companies. For complete details about the AAdvantage® program, visit www.aa.com/aadvantage.

American Airlines, American Eagle, AAdvantage, AAdvantage Million Miler, MileSAAver, Business Extra, Flagship, Admirals Club, Platinum Pro, AAdvantage MileUp, AA Cargo, the Flight Symbol logo and the Tail Design are marks of American Airlines, Inc.

EXHIBIT C

CITI® / AADVANTAGE® GOLD CARD



JESSICA PENA

Member Since 2017 Account number ending in: 4834

Billing Period: 12/10/21-01/11/22

www.citicards.com

Customer Service 1-800-846-8444

Speech/hearing impaired: 711

BOX 6500 SIOUX FALLS, SD 57117

JANUARY STATEMENT

Minimum payment due: \$3,961.16

New balance as of 01/11/22: \$3,961.16

Payment due date: 01/11/22

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 month(s)	\$3,961

For information about credit counseling services, call 1-877-337-8188.

Account Summary

Previous balance	\$3,883.21
Payments	-\$0.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$77.95
New balance	\$3,961.16

Credit Limit

Revolving Credit limit	\$3,400
Includes \$800 cash advance limit	

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 85062-8045

 Pay online www.citicards.com

Pay by phone 1-800-846-8444

 Pay by mail Use this coupon
• Enclose a valid check or money order payable to CITI CARDS. No cash or foreign currency.
• Write the last four digits of your account number on your check.

Minimum payment due	\$3,961.16
New balance	\$3,961.16
Payment due date	01/11/22

Amount enclosed:

Account number ending in 4834
Please make check payable to CITI CARDS.

000000 WE 34 A 0

JESSICA PENA
12983 SUNBURST ST
PACOIMA CA 91331CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

15009 0396116 0396116 0010000 4834 0705

JESSICA PENA

Account Summary

Trans. date	Post date	Description	Amount
----------------	--------------	-------------	--------

Fees charged

Total fees charged in this billing period	\$0.00
---	--------

Interest charged

Date	Description	Amount
01/11	INTEREST CHARGED TO STANDARD PURCH	\$2.45
01/11	INTEREST CHARGED TO PUR PR-06/30/21.	\$72.91
01/11	INTEREST CHARGED TO PUR PR-09/30/21.	\$2.59
Total interest charged in this billing period	\$77.95	

2022 totals year-to-date

Total fees charged in 2022	\$0.00
Total interest charged in 2022	\$77.95

Interest charge calculation

Days in billing cycle: 33

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	21.99% (V)	\$123.36 (D)	\$2.45
Pur Pr 063021	21.99% (V)	\$3,667.13 (D)	\$72.91
Pur Pr 093021	21.99% (V)	\$130.39 (D)	\$2.59
ADVANCES			
Standard Adv	25.24% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Minimum Payment Due includes past due amounts. Your account may be with a collection vendor and when you call our number, you may be referred to the vendor. You may reach us at the toll-free number shown above Monday-Thursday 8am to 6 pm or Friday 8am to 5pm, Central Time. 1-800-846-8444. TTY 1-855-371-0353.

©2021 Citibank, N.A.

Citi, Citi and Arc Design and other marks used herein are service marks of Citigroup Inc. or its affiliates, used and registered throughout the world. American Airlines, American Eagle, AAdvantage, AAdvantage Million Miler, MileSAAver, Business Extra, Flagship, Admirals Club, Platinum Pro, AAdvantage MileUp, AA Cargo, the Flight Symbol logo and the Tail Design are marks of American Airlines, Inc.

JESSICA PENA
12983 SUNBURST ST
PACOIMA CA 91331--334